Suffolk County Registry of Deeds

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Suffolk County Registry of Deeds
Stephen J. Murphy, Register
24 New Chardon Street
Boston, MA 02114
617-788-8575
Suffolkdeeds.com

Date Filed 2/20/2026 7:10 AM
Superior Court - Suffolk
Docket Number

ER

COMMONWEALTH OF MASSACHUSETTS

SUFFOLK, SS

SUPERIOR COURT
C.A. NO.
26-0522 H

BOSTON BUILDERS, INC.
Plaintiff,

v.

ENGLEWOOD CONSTRUCTION, INC.
LINEAGE HOSPITALITY LLC a/k/a SALLY'S APIZZA
FORT POINT CHANNEL INVESTORS LLC
Defendants

MECHANIC'S LIEN COMPLAINT UNDER M.G.L. C. 254

INTRODUCTION

1. This is an action by plaintiff subcontractor against a general contractor and project owners for breach of contract, quantum meruit and enforcement of a mechanic's lien under M.G.L. c. 254, because it was paid nothing for labor and materials furnished months ago, in 2025.

PARTIES

2. Plaintiff subcontractor Boston Builders, Inc.("Boston Builders") is a Massachusetts corporation with a principal place of business at 8 Magnolia Drive, Rockland, Plymouth County MA 02370.

3. Defendant general contractor Englewood Construction, Inc. ("Englewood") is an Illinois corporation with resident agent Corporation Service Company located at 84 State Street, Boston, MA 02109.

4. The defendant leasehold owner Lineage Hospitality LLC a/k/a Sally's Apizza ("Sally's") is a Delaware limited liability company with resident agent John Connell located at 112 Water Street, Suite 201, Boston MA 02109.

5. The defendant landlord and fee interest owner, Fort Point Channel Investors LLC ("Fort Point") is a Delaware limited liability company with resident agent CT Corporation System located at 155 Federal Street, Suite 700, Boston MA 02110.

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FACTS

6. Sally's Apizza restaurant is located on real property known as 12-56 Thomson Place, Boston Massachusetts 02210 owned by Fort Point, leased by Sally's, and further described in a deed recorded in Suffolk County Registry of Deeds, Book 63270, Page 220 ("the Property.")

7. On or about April 30, 2025, plaintiff subcontractor Boston Builders entered into a subcontract ("the subcontract") with defendant general contractor Englewood under which Boston Builders furnished and installed certain finish carpentry, metal studs, drywall and related work at the Property.

8. The original subcontract price was $428,431.

9. Boston Builders performed agreed change order work, the agreed price and/or fair value of which is $29,319.65.

10. Boston Builders performed pending change order work and/or extra work, the agreed price and/or fair value of which is $55,301.36.

11. Boston Builders's subcontract work, change order work and/or extra work completed and billed total $293,662.15.

12. Englewood paid Boston Builders nothing for the subcontract work and change order/extra work performed, leaving $293,662.15 due and owing.

13. On September 10, 2025, Boston Builders recorded a Notice of Contract in the Suffolk County Registry of Deeds in Book 71859, Page 272, copy of which is attached hereto as Exhibit A.

14. On or about September 18, 2025, Boston Builders furnished Fort Point and Sally's notice of the recording of the notice of contract via certified mail, return receipt requested.

15. On November 26, 2025, Boston Builders recorded a Statement of Amount Due in the Suffolk County Registry of Deeds in Book 72152, Page 258, copy of which is attached hereto as Exhibit B.

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16. Pursuant to G.L. c. 254, Boston Builders is entitled to enforce its mechanic's lien against the Property.

17. Boston Builders has complied with all requirements of G.L. c. 254 and all conditions precedent.

18. In accordance with the provisions of G.L. c. 254, this civil action was commenced within ninety (90) days of the filing of the Statement of Amount Due.

COUNT ONE - CONTRACT AND QUANTUM MERUIT

19. Boston Builders realleges paragraphs 1 through 18 of this complaint.

20. Boston Builders has not been paid for the amounts due under the subcontract for its work performed or material furnished at the Property and there is now due and owing to Boston Builders a principal sum not less than $293,662.15, which amount Englewood owes to Boston Builders.

21. Boston Builders is entitled to payment under the subcontract and change orders in the sum of $293,662.15; in the alternative, it is entitled to recover in quantum meruit for the value of the work performed and materials furnished in an amount greater than or equal to $293,662.15.

22. All conditions precedent to the maintenance of this action have been performed.

WHEREFORE, Boston Builders, Inc. prays this court enter judgment for Boston Builders, Inc. against Englewood Construction, Inc. for $293,662.15, statutory interest from the date of its last invoice, and costs.

COUNT TWO - MECHANIC'S LIEN

23. Boston Builders realleges paragraphs 1 through 22 of this complaint.

24. As a result of furnishing and installing labor and materials on the Property and the

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Notice of Contract and Statement of Amount Due filed by Boston Builders, Boston Builders claims a lien on the Property to secure the unpaid balance of its account in an amount not less than $293,662.15.

25. All conditions precedent to the maintenance of this action have been performed.

WHEREFORE, Boston Builders demands the entry of:

(a) judgment in its favor against Englewood Construction, Inc., Lineage Hospitality, LLC a/k/a Sally's Apizza, and Fort Point Channel Investors, LLC, jointly and severally, in the amount of $293,662.15, statutory interest from the date of its last invoice, and costs;

(b) a ruling and judgment that Boston Builders has perfected a valid mechanic's lien on the Property in the amount of $293,662.15, statutory interest from the date of its last invoice, and costs, as provided by G.L. c. 254, §5;

(c) an order for a sale of the defendants' Property interests for the satisfaction of the plaintiff's lien as provided by G.L. c. 254, §5A, and that the proceeds of the sale be applied to the amounts owed to Boston Builders, including $293,662.15, statutory interest from the date of its last invoice, and costs; and such other relief as the court deems appropriate.

PLAINTIFF DEMANDS A TRIAL BY JURY ON ALL COUNTS SO TRIABLE

I HEREBY ATTEST AND CERTIFY ON 02/20/2026, THAT THE FOREGOING DOCUMENT IS A FULL, TRUE AND CORRECT COPY OF THE ORIGINAL ON FILE IN MY OFFICE, AND IN MY LEGAL CUSTODY.
John E. Powers, III
Clerk Magistrate
SUFFOLK SUPERIOR CIVIL COURT
DEPARTMENT OF THE TRIAL COURT
BY: Asst. Clerk

Plaintiff
BOSTON BUILDERS, INC.
By its attorney,

/s/ Stephen Kolberg
Stephen Kolberg
(BBO #549152)
Kolberg Law PC
One Boston Place, Suite 2600
Boston, MA 02108
617-737-7800
617-737-7802 (Fax)
skolberg@kolberglaw.com

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Recording Information

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EXHIBIT
A

Date Filed 2/20/2026 7:10 AM
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NOTICE OF CONTRACT PURSUANT TO G.L. c. 254, §4

Notice is hereby given that by virtue of a written contract dated April 30, 2025, between Englewood Construction, Inc., contractor, of 80 Main Street, Lemont, Illinois 60439 and Boston Builders, Inc., subcontractor, of 8 Magnolia Drive, PO Box 145 Rockland, MA 02370 said Boston Builders, Inc., is to furnish or has furnished labor or material, or both labor and material, or is to furnish or has furnished rental equipment, appliances or tools, in the erection, alteration, repair or removal of a building, structure or other improvement of real property by Englewood Construction, Inc., contractor, for Lineage Hospitality LLC a/k/a Sally's Apizza, tenant, with the consent of Fort Point Channel Investors LLC, Landlord and Owner, on a lot of land or other interest in real property known as 12-56 Thomson Place, Boston Massachusetts 02210 and further described in a Deed recorded in Suffolk County Registry of Deeds, Book 63270, Page 220.

As of the date of this notice, an account of said contract is as follows:

Subcontract price	$428,431.00
Agreed change orders	29,319.65
Pending change orders	55,301.36
Completed and Billed to Date	293,662.15
Amount Paid to Date	0.00
Balance Due	**$293,662.15**

The regular mailing address of the party recording or filing this notice is as follows:

Boston Builders, Inc., subcontractor, of 8 Magnolia Drive, PO Box 145 Rockland, MA 02370.

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Witness my hand and seal under oath this 10th day of September 2025.

BOSTON BUILDERS, INC.

By: _____
Edward Kimball, President

COMMONWEALTH OF MASSACHUSETTS

Norfolk, ss:

On this 10th day of September 2025, before me, the undersigned notary public, personally appeared Edward Kimball, proved to me through satisfactory evidence of identification, i.e., a Massachusetts driver's license, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose individually and as President of Boston Builders, Inc.

_____
Notary Public

My Commission Expires:

WENDY LYNN ORTENZI
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires On
October 12, 2029

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Recording Information

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EXHIBIT
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STATEMENT OF AMOUNT DUE PURSUANT TO C. 254, §8

The undersigned furnished labor or material, or both labor and material, or performed labor, under a written contract dated April 30, 2025, between Boston Builders, Inc., subcontractor, of 8 Magnolia Drive, PO Box 145 Rockland, MA 02370 and Englewood Construction, Inc., contractor, of 80 Main Street, Lemont, Illinois 60439 for Lineage Hospitality LLC a/k/a Sally's Apizza, tenant, with the consent of Fort Point Channel Investors LLC, Landlord and Owner, in the erection, alteration, repair or removal of a building or structure on a lot of land or other interest in real property known as 12-56 Thomson Place, Boston Massachusetts 02210 and further described in a Deed recorded in Suffolk County Registry of Deeds, Book 63270, Page 220, for which the undersigned has filed a notice of contract herewith.

$293,662.15 is presently due and unpaid the undersigned for the above labor or material, or both labor and material, of which the following is a just and true account:

Subcontract price	$428,431.00
Agreed change orders	29,319.65
Pending change orders	55,301.36
Completed and Billed to Date	293,662.15
Amount Paid to Date	0.00
Balance Due	**$293,662.15**

The name of the Lessor/Owner is Fort Point Channel Investors LLC, c/o CT Corporation System, 155 Federal Street, Suite 700, Boston MA 02110 and the name of the Lessee is Lineage Hospitality LLC a/k/a Sally's Apizza, 614 N Dupont Hwy., Suite 210, Dover, DE 19901.

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Witness my hand and seal under oath this 1st day of September 2025.

BOSTON BUILDERS, INC.

By: _____
Edward Kimball, President

COMMONWEALTH OF MASSACHUSETTS

Norfolk, ss:

On this 1st day of ~~March~~ September 2024, before me, the undersigned notary public, personally appeared Edward Kimball, proved to me through satisfactory evidence of identification, i.e., a Massachusetts driver's license, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose individually and as President of Boston Builders, Inc.

_____
Notary Public
My Commission Expires:

WENDY LYNN ORTENZI
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires On
October 12, 2029